

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent and
Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE. LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: August 7, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER ON RESPONDENT’S MOTION TO COMPEL

On July 29, 2025, Respondent filed a motion to compel (“MTC”) Complainant to answer interrogatories and respond to document requests, asserting that Complainant has failed and refused to respond to discovery requests within 30-days after they were propounded by Respondent, as set forth in 46 C.F.R. §§ 502.145(b)(2), 502.146(b)(2)(i). Respondent also states that the undersigned “should enter an order confirming that SEA has waived any objections to COSCO’s discovery requests due to its failure to timely answer and object.” MTC at 5, citing 46 C.F.R. § 502.145(b)(4).

On August 5, 2025, Complainant responded to the MTC stating that it understood the July 8, 2025, order extending the deadlines to apply to discovery in general, “to allow for settlement discussion...” Response to Motion to Compel at 4. In addition, Complainant asserts that it “provided its discovery responses” on August 5, 2025, “less than one week after settlement negotiations ceased” on July 30, 2025. *Id.* at 5. After considering the parties’ arguments and the record as a whole, Respondent’s MTC is denied, as detailed further below.

On May 12, 2025, Respondent filed its answer with counterclaim, and a third-party complaint. As stated in the Initial Order, the parties were required to “submit a joint status report with proposed schedule...within fifteen days of the service of the answer.” Initial Order at 1.

On May 23, 2025, the Friday of a holiday weekend and four days before the joint status report and proposed discovery schedule were due, Respondent moved to “defer” filing the joint status report without setting forth good cause for the late filing.

On May 27, 2025, Complainant filed a status report and proposed schedule, but Respondent did not join in the status report or propose a discovery schedule. Complainant proposed that the parties serve discovery requests on June 3, 2025, complete document production on July 14, 2025, complete fact depositions on August 25, and complete all discovery on October 9, 2025. Status Report and Proposed Discovery Schedule at 1-4.

The May 28, 2025, an Order on Motion to Defer Filing Joint Status Report and Proposed Schedule (“Order on Motion to Defer and Discovery Schedule”) issued, denying Respondent’s motion and adopting Complainant’s proposed schedule, changing only the date to serve discovery requests to June 4, 2025, and completion of discovery to September 29, 2025, stating:

SEA proposes a discovery schedule that does not allow for the issuance of an initial decision by September 29, 2025. Despite proposing a compressed discovery schedule, SEA contends that it is unrealistic, and the parties likely will require substantial amendment to the schedule due to the anticipated volume of electronically stored information, the need to translate documents, and the location of likely deponents in a different time zone. Given the remaining allegations in the amended complaint, the counterclaims, and the third-party complaint, the parties will likely need more time for discovery as the case progresses, but that can be addressed in the future when the parties can confer on the extent of discovery requests and, preferably, submit a joint motion to amend the schedule.

Order on Motion to Defer and Discovery Schedule at 1. The May 28, 2025, order set the schedule as follows:

June 4, 2025	Parties Serve Discovery Requests
July 14, 2025	Document Production Completed, Fact Depositions Begin
July 21, 2025	Joint Status Report
August 25, 2025	Complete Fact Depositions
August 25, 2025	Expert Discovery Begins
September 29, 2025	Discovery Completed

On May 30, 2025, the parties jointly moved to extend the time to serve discovery requests from June 4, 2025, to July 18, 2025, but to otherwise maintain the schedule set forth in the May 28, 2025, order. As good cause to modify the schedule, the parties stated that they had exchanged initial disclosures and conferred regarding scheduling a conference to explore possible mediation with CADRS.

On June 2, 2025, the parties’ motion was granted as to service of initial discovery requests, modifying the date from June 4, 2025, to June 18, 2025, leaving all other dates intact.

On June 26, 2025, the parties submitted a Third Joint Motion for Enlargement of Time (“Third MTE”), seeking to “enlarge the discovery schedule set forth in the Presiding Officer’s June 2, 2025 Order...by one (1) month for the limited purpose of pursuing an in-person mediation through the [FMC’s CADRS] the week of July 14, 2025.” Third MTE at 1. As good cause for the motion, the parties stated that they would prepare and submit mediation statements to each other and to CADRS and the month-long enlargement would allow them to “adequately for and commence mediation through CASDRS.” *Id.* at 3. They also stated that “[i]f successful, mediation will limit time and resources expended if the Parties can resolve the matter, or at least, get closer to settlement and/or narrow the issues.” *Id.* at 2.

On July 8, 2025, the Third MTE was granted, and the schedule was extended by 30-days. Thus, completion of document production and initiation of fact depositions was enlarged from July 14, 2025, to August 14, 2025; a joint status report was enlarged from July 21, 2025, to August 21, 2025, and so on, with the completion of discovery enlarged from September 29, 2025, to October 29, 2025. *See* July 8, 2025, Order Granting Joint Motion to Modify Schedule. Respondent now seeks an order compelling Complainant to produce discovery before the August 14, 2025, deadline to complete production, and finding that Complainant has waived the right to object to discovery requests because it did not abide by Commission Rules 205 and 206. 46 C.F.R. §§ 502.145, 502.146.

The schedule as proposed by Complainant, substantially adopted, and as modified by the parties’ May 28, 2025, and June 26, 2025, requests, does not state when document production and responses to interrogatories are due; it only provides for the completion of production. While Respondent is correct that Commission Rules 205 and 206 provide 30-day deadlines for document production and responses to interrogatories, the parties requested a one-month extension of the schedule on June 26, 2025, prior to the July 14, 2025, date for the completion of document production. Contrary to Respondent’s assertions in the MTC, there is nothing in the Third MTE to indicate that the parties did not intend to include the responses to interrogatories and document production in the request for an enlargement of time.¹ Rather, Complainant believes that the time for responding to discovery requests was extended, Respondent believes that it wasn’t, and both positions are reasonable interpretations given the schedule’s minimalist deadlines and the Third MTE’s lack of specificity of the due dates of responses to discovery requests. This difference in interpretation of the impact of the joint motion to extend the discovery schedule highlights the lack of communication between the parties, during and immediately following, a full day of mediation.

Respondent’s interpretation of the schedule and whether the time to start responses to discovery requests was extended by the order of July 8, 2025, is based on the 30-day deadlines set forth in Commission Rules 205 and 206, as well as the absence of a date for the start of production. However, Respondent did not participate in the proposal of a discovery schedule, so its interpretation of what Complainant intended may be incorrect and cannot be a basis for

¹ Respondent contends that “the parties never sought an extension of time to respond to already-served requests, and the July 8 Order stated that the motion ‘will not automatically stay other deadlines in the proceeding’ which are not ‘clearly addressed in the motion....’” MTC at 4, citing July 8 Order at 2. The instructional language in that part of the order was not referencing the Third MTE but providing guidance for the structure of future motions.

denying Complainant the right to object to discovery requests. Moreover, Respondent's argument that certain words used in the July 8, 2025, order supports its interpretation is not persuasive (see MTC at 3, emphasizing "not" and "milestones"). The order of July 8, 2025, held that "[w]hile mediation typically does not stay a proceeding, the parties have proposed a 30-day modification to the schedule" and that enlargement of time was reasonable "[b]ecause the request is for a short period of time, and the parties represent that mediation may help them settle this matter, or at least narrow the issues...." July 8, 2025, Order Granting Joint Motion to Modify Schedule at 1 (emphasis added). Here, because of the short period requested and the parties' assertion that mediation could settle or narrow the issues, discovery was, effectively, stayed by the 30-day enlargement of the schedule so that the parties could pursue settlement.

The MTC was filed on July 29, 2025, eleven days after the date Respondent contends the responses were due. Complainant's response to the motion was due and received on August 5, 2025, leaving a week after the issuance of this order before document production must be completed. Complainant asserts that within the response period to the MTC, and prior to the August 14, 2025, deadline to complete document production, it responded to Respondent's discovery requests. Response to Motion to Compel at 1, Ex. 2. Complainant also states that it did not review Respondent's document production until after the cessation of settlement negotiations. Response to Motion to Compel at 4, 8; Ex. 1. Under these circumstances, there is no prejudice to Respondent.

Based on the above, it is hereby

ORDERED that Respondent's motion to compel is **DENIED**. It is

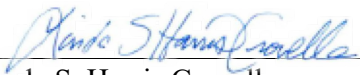
FURTHER ORDERED that the parties follow this schedule:

August 14, 2025	Document Production Completed, Fact Depositions Begin
August 18, 2025	Joint Status Report
September 25, 2025	Complete Fact Depositions
September 25, 2025	Expert Discovery Begins
October 1, 2025	Joint Status Report
October 29, 2025	Discovery Completed

To avoid further confusion regarding the discovery schedule, a second joint status report has been added to the schedule in October. In both the August and October status reports, the parties must **jointly** describe the status of discovery, including any discovery issues and efforts made to resolve them.

The parties are encouraged to make progress on narrowing the issues in this proceeding by use of mediation and stipulation to facts that are not in contention. Better communication between the parties is recommended so the parties both fully understand the discovery schedule

when making motions to modify it. A joint motion to add further detail to the discovery schedule could also help to avoid future misunderstandings.



Linda S. Harris Crovella
Administrative Law Judge